

SENATE No. 761

The Commonwealth of Massachusetts

PRESENTED BY:

Cindy F. Friedman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act ensuring access to full spectrum pregnancy care.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Cindy F. Friedman</i>	<i>Fourth Middlesex</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>1/27/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>1/28/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/10/2025</i>
<i>Susannah M. Whipps</i>	<i>2nd Franklin</i>	<i>2/12/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>2/19/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/21/2025</i>
<i>Liz Miranda</i>	<i>Second Suffolk</i>	<i>3/18/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>3/31/2025</i>
<i>Edward J. Kennedy</i>	<i>First Middlesex</i>	<i>4/17/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/30/2025</i>
<i>Paul W. Mark</i>	<i>Berkshire, Hampden, Franklin and Hampshire</i>	<i>7/7/2025</i>

SENATE No. 761

By Ms. Friedman, a petition (accompanied by bill, Senate, No. 761) of Cindy F. Friedman, Joanne M. Comerford, Rebecca L. Rausch, Manny Cruz and other members of the General Court for legislation to ensure access to full spectrum pregnancy care. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 646 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act ensuring access to full spectrum pregnancy care.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 17C of chapter 32A of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in the first paragraph, the words “or certified
3 nurse midwife;” and inserting in place thereof the following words:- “certified nurse midwife, or
4 licensed midwife;” and is further amended in the second paragraph by striking out the words “or
5 certified nurse midwife” and inserting in place thereof the following words:- “certified nurse
6 midwife, or licensed certified professional midwife”.

7 SECTION 2. Said section 17C of said chapter 32A, as so appearing, is hereby further
8 amended by striking out in the third paragraph, in each instance, the following words:- “for
9 abortion or abortion-related care”.

SECTION 3. Said section 17C of said chapter 32A, as so appearing, is hereby further amended by inserting after the fifth paragraph the following paragraph:-

The commission shall ensure plan compliance with this section.

SECTION 4. Section 10A of Chapter 118E of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in the first paragraph, the words “or certified nurse midwife;” and inserting in place thereof the following words:- “certified nurse midwife, or licensed midwife;” and is further amended in the second paragraph by striking out the words “or certified nurse midwife” and inserting in place thereof the following words:- “certified nurse midwife, or licensed certified professional midwife”.

SECTION 5. Said section 10A of said chapter 118E, as so appearing, is hereby further amended by inserting after the third paragraph the following two paragraphs:-

Nothing in this section shall be construed to deny or restrict the division’s authority to ensure its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan are in compliance with this chapter.

The division shall ensure plan compliance with this chapter.

SECTION 6. Section 47F of chapter 175 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in the second paragraph, the words “or certified nurse midwife;” and inserting in place thereof the following words:- “certified nurse midwife, or licensed midwife;” and is further amended in the third paragraph by striking out the

following words” or certified nurse midwife” and inserting in place thereof the following words:-
“certified nurse midwife, or licensed certified professional midwife”.

SECTION 7. Said section 47F of said chapter 175, as so appearing, is hereby further amended by striking out in the fourth paragraph, in each instance, the following words:- “for abortion or abortion-related care”.

SECTION 8. Said section 47F of said chapter 175, as so appearing, is hereby further amended by inserting after the seventh paragraph the following paragraph:-

The commissioner shall ensure plan compliance with this section.

SECTION 9. Section 8H of chapter 176A of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in the second paragraph, the words “or certified nurse midwife;” and inserting in place thereof the following words:- “certified nurse midwife, or licensed midwife;” and is further amended by striking out, in the third paragraph, following words” or certified nurse midwife” and inserting in place thereof the following words:- “certified nurse midwife, or licensed certified professional midwife”.

SECTION 10. Said section 8H of said chapter 176A, as so appearing, is hereby further amended by striking out in the fourth paragraph, in each instance, the following words:- “for abortion or abortion-related care”.

SECTION 11. Said section 8H of said chapter 176A, as so appearing, is hereby further amended by inserting after the seventh paragraph the following paragraph:-

The commissioner shall ensure plan compliance with this section.

SECTION 12. Section 4H of chapter 176B of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in the second paragraph, the words “or certified nurse midwife;” and inserting in place thereof the following words:- “certified nurse midwife, or licensed midwife;” and is further amended in the third paragraph by striking out the following words” or certified nurse midwife” and inserting in place thereof the following words:- “certified nurse midwife, or licensed certified professional midwife”.

SECTION 13. Said section 4H of said chapter 176B, as so appearing, is hereby further amended by striking out in the fourth paragraph, in each instance, the following words:- “for abortion or abortion-related care”.

SECTION 14. Said section 4H of said chapter 176B, as so appearing, is hereby further amended by inserting after the seventh paragraph the following paragraph:-

The commissioner shall ensure plan compliance with this section.

SECTION 15. Section 4I of chapter 176G of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by striking out, in the first paragraph, the words “or certified nurse midwife;” and inserting in place thereof the following words:- “certified nurse midwife, or licensed midwife;” and is further amended in the second paragraph by striking out the following words” or certified nurse midwife” and inserting in place thereof the following words:- “certified nurse midwife, or licensed certified professional midwife”.

SECTION 16. Said section 4I of said chapter 176G, as so appearing, is hereby further amended by striking out in the third paragraph, in each instance, the following words:- “for abortion or abortion-related care”.

71 SECTION 17. Said section 4I of said chapter 176G, as so appearing, is hereby further
72 amended by inserting after the sixth paragraph the following paragraph:-

73 The commissioner shall ensure plan compliance with this section.

74 SECTION 18. Sections 1 to 17, inclusive, shall apply to all policies, contracts and
75 certificates of health insurance subject to chapters 32A, 118E, 175, 176A, 176B and 176G of the
76 General Laws that are delivered, issued or renewed 6 months from the effective date of this act.